

a clause to the effect that their customers shall not use any trademark of Sellers. The Buyer shall immediately intimate the Seller in writing of such use of the Sellers trademarks.

X. GENERAL

25. In respect of any products manufactured by the Buyers which are made wholly or partly from the goods under this invoice, the Buyers agree to send samples of those products to the Sellers from time to time, free of cost.
26. It is expressly agreed by the Buyers that they shall not resale the goods covered under this invoice unless otherwise agreed to by the Seller in writing.
27. The Sellers and /or their authorized representatives shall be entitled to visit and inspect the factories of the Buyer, including those where goods under this sale are used at any time to examine books, paper, machinery, site and process conditions, products etc. and make note of the same. The Buyers shall give all facility on a priority basis as may be required by the Sellers in this behalf. In case where the seller gives technical advice to Buyer with respect to the processing or treatment of goods, it is agreed that such advice is given without any liability on the Seller's part.
28. The property in the goods will not pass to the Buyer until the price has been paid in full by the Buyer to the Seller. For F.O.R deliveries, seller shall bear transit risk. For Ex-factory Sale, the risk of transit shall be borne by buyer.
29. The Contract shall be from principal to principal.
30. Anything written by Buyers in any language in this invoice except their signature or initial shall be void and of no effect and shall not be constructed as part of the terms and condition of this sale.
31. Any notice or other document intended for either party here to shall be deemed to have been validity served if sent by post to the address which appears herein.
32. The Contract shall be deemed to have been entered into the Pune. All proceeding which either party to the contract may be entitled to take against the other under the contract shall be instituted in a court having jurisdiction in the city of Pune only.
33. In the event of the time for delivery having been extended as herein before mentioned, all the terms conditions of this contract shall continue to apply mutatis mutandis.
34. The Sellers responsibility ceases immediately after goods are handed over to the Railway and/ or carriers and a clean receipt hereof is obtained, and the Sellers will not be liable for loss of goods in transit unless otherwise specified. Goods will be dispatched by Road Transport and/ or goods Trains entirely at the Buyer's risk. If desired by the Buyer, the goods having been sent by Road Transport will be insured against Road Risk and premium charged extra to the Buyer.